

Smt. Vidyavati Devi v. State of U.P.

Allahabad High Court · Division Bench · 14 July 2026 · Writ-C No. 25298 of 2026 · **Writ disposed of; respondent No. 3 to decide Clause 6.5 objections expeditiously**

HEADNOTE

A writ seeking to quash a provisional assessment bill and to have written objections decided under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is disposed of by directing the assessing officer to decide those objections in accordance with law expeditiously. The Court does not examine or quash the bill.

FACTUAL SUMMARY

Smt. Vidyavati Devi and another filed a writ petition challenging a provisional assessment bill of Rs. 4,22,869 issued on 19 September 2025 (Letter No. 1507/Vi.Vi.Kha.Pra.Ga./Revenue/REDS). They sought certiorari to quash the bill and a mandamus directing the respondents to decide their written objections by a speaking order under Clause 6.5 of the U.P. Electricity Supply Code, 2005, after a personal hearing. Counsel for respondent Nos. 2 and 3 stated that respondent No. 3 would decide the matter expeditiously.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Provisional assessment — objections to be decided under Clause 6.5

HOLDING

A writ that seeks certiorari to quash a provisional assessment bill and mandamus to decide written objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is finally disposed of without examining the bill. The assessing officer is directed to decide those objections in accordance with law expeditiously, if there is no legal impediment. ¶ 4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ seeking to quash a provisional assessment bill and to have written objections decided under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is disposed of by directing the assessing officer to decide those objections in accordance with law expeditiously. The Court does not examine or quash the bill. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT BILL OF RS. 4,22,869

The Court did not quash the bill or examine whether it was arbitrary. Respondent No. 3 is to decide the written objections in accordance with law. ¶ 4

NOT DECIDED — RIGHT TO A PERSONAL HEARING BEFORE THE CLAUSE 6.5 DECISION

The petitioners asked for an explicit chance to be heard in person. The Court directed a decision in accordance with law without separately granting or refusing a personal hearing. ¶ 2, 4